

TENTATIVE RULING

Maria Maciel

v.

Salinas Valley Health, et al.

25CV00199

Defendants’ Motion for Summary Judgment or, Alternatively, Summary Adjudication

Hearing Date: July 17, 2026

Defendants Salinas Valley Memorial Healthcare System (“SVMHS”), Michael E. Basse, M.D., and Kimberly L. Moulton, M.D. (collectively, “Defendants”) seek summary judgment or, alternatively, summary adjudication on Plaintiff Maria Maciel’s (“Plaintiff”) claim of professional negligence, which alleges substandard surgical and postoperative care following a laparoscopic bilateral oophorectomy on January 18, 2024, and emergency room care on January 19, 2024. [Defendants’ Separate Statement of Undisputed Material Facts (“Defense Fact(s)”) 1-18, 20-30, 33, 35, 37-39, 41-43.] Plaintiff required additional surgeries on January 27, 2024, due to infection and bowel perforation. [*Ibid.*] Defendants argue that the opinions of their experts, William Whetstone, M.D., and Dr. Brad Piatt, M.D., demonstrate compliance with the relevant standard of care and show a lack of causation. [Defense Facts 44, 46, 52, and 54.] Plaintiff counters with the opposing expert declarations of Ross Goldberg, M.D., and Derek Golden, M.D. [Plaintiff’s Response to Defense Facts 44, 46, 48, 50, 52, and 54; Plaintiff’s Separate Statement of Additional Material Facts (“Plaintiff’s Fact(s)”) 1A-5A.]

As outlined below, Defendants’ motions for summary judgment and summary adjudication are **DENIED**. They met their initial burden with expert declarations, shifting the burden to Plaintiff. In turn, Plaintiff provided admissible expert evidence from Drs. Goldberg and Golden, raising triable issues of fact regarding breach of the standard of care and causation for Drs. Basse and Moulton. Additionally, Defendants failed to address, let alone negate, SVMHS’s vicarious liability for either physician.

The Court **SUSTAINS** Plaintiff’s Objection No. 1 and Defendants’ Objections Nos. 12-13. Otherwise, the Court **OVERRULES** the remaining objections from both parties.

Legal Standard.

Summary judgment or adjudication is warranted where there are no triable issues of material fact, and the moving party is entitled to judgment as a matter of law. [Code Civ. Proc. § 437c, subds. (c), (f); *see Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.]

Courts follow a three-step process when reviewing a motion for summary judgment or adjudication: (1) identify the issues outlined by the pleadings; (2) evaluate whether the moving party has disproved the opponent’s claims; and (3) assess if the opposition has shown there is a triable factual issue. [*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.]

A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” [Code Civ. Proc. § 437c, subd. (f)(2).] The initial burden always rests on the moving party to make a prima facie showing that no material factual issues are in dispute. [*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453.] When a defendant files for summary judgment or adjudication, they satisfy their initial burden if they prove that at least one element of the cause of action cannot be established or that a complete defense exists. [Code Civ. Proc. § 437c, subd. (p)(2).] Failure to meet this burden results in denial of the motion, ending the inquiry. [*Id.*]

To meet the burden of proving that a cause of action cannot be established, a defendant must demonstrate that the plaintiff does not possess, and cannot reasonably obtain, the needed evidence. [*Aguilar*, 25 Cal.4th at 854.] Merely pointing out the lack of evidence is not enough. [*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.] This supporting evidence may include affidavits, declarations, admissions, depositions, answers to interrogatories, and matters subject to judicial notice. [*Aguilar*, 25 Cal.4th at 855.]

Even if the moving defendant meets its burden, the opposing plaintiff can still defeat a summary judgment or summary adjudication motion by presenting evidence that raises a triable issue of fact. [*Aguilar*, 25 Cal. 4th at 849-850.] The plaintiff cannot rely solely on allegations or denials in its pleadings; instead, it must present specific facts indicating the existence of a triable issue of material fact concerning the cause of action. [Code Civ. Proc. § 437c, subd. (p)(2); *Choochagi*, 60 Cal.App.5th at 453.] If the plaintiff fails to do so, summary judgment or summary adjudication should be granted. [*See Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.]

The court must liberally construe the evidence presented by the party opposing summary judgment or adjudication, resolving all doubts and making all reasonable inferences in favor of that party. [*Aguilar*, 25 Cal.4th at 844-845.] When reviewing such a motion, the court must consider what inferences a factfinder could reasonably draw that favor the opposing party. [*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.] The main role of the court is to identify issues, not to decide them; only clear and indisputable inferences can lead to a legal resolution. [*Ibid.*] If evidence conflicts, factual disputes must be resolved during trial. [*Ibid.*] Furthermore, the trial court cannot weigh evidence as a factfinder would to determine credibility, nor can it grant summary judgment based on credibility assessments. [*Id.* at 840.]

Evidentiary Objections.

Plaintiff’s Objection No. 1 is **SUSTAINED** based on the grounds stated. Plaintiff’s remaining objections, Nos. 2 through 8, are **OVERRULED**. Objections raised by Plaintiff regarding the evidence supporting Defense Facts 36 and 40 relate to the weight, not the admissibility, of Defendants’ evidence. The evidence cited in Defense Facts 44, 48, 50, 52, and 54 is admissible because it is not based on assumptions of fact without evidentiary support or on speculative or conjectural factors. [*See, c.f., Sanchez v. Kern Emergency Medical Transportation Corp.* (2017) 8 Cal.App.5th 146, 155.] The declarations cited in each of those Defense Facts explain the basis or reasoning of the opinions. [*See, c.f., Alexander v. Scripps Memorial Hospital La Jolla* (2018) 23 Cal.App.5th 206, 229.]

Defendants' Objection Nos. 1-11 and 14-16 are **OVERRULED**. However, Defendants' Objection Nos. 12-13, which relate to paragraphs 10 through 15 of Dr. Charles Dubin's Declaration [Exh. L to Wright Decl.], are **SUSTAINED** based on the grounds asserted. Dr. Dubin, who is an OB/GYN, does not state his familiarity with the standard of care. Additionally, he fails to attest how his OB/GYN expertise makes him competent to testify about matters related to radiology or emergency medicine.

Discussion.

The standard of care expected of a healthcare provider is to exercise a reasonable degree of skill, knowledge, and care comparable to that of reputable providers under similar circumstances. [*Alef v. Alta Bates Hospital* (1992) 5 Cal.App.4th 208, 215.] Additionally, expert testimony is necessary to establish that any alleged breach of this standard was likely caused, within a reasonable medical probability, of the claimed injury. [*Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402-403.]

Defendants have satisfied their initial summary-judgment burden by providing evidence that would prevent a reasonable fact-finder from concluding it was more likely than not that their treatment of Plaintiff was below the standard of care. [Defense Facts 44, 46, 48, 50, 52, and 54 (citing Drs. Whetstone's and Piatt's declarations).] Dr. Whetstone opines, to a reasonable degree of medical certainty, that "the care and treatment provided by Dr. Moulton and all agents and employees of SVMHS in the emergency department complied at all times with the applicable standard of care, and that no act or omission to act on their part caused any injury to Plaintiff." [Defense Facts 44, 46, 52, and 54 (citing Dr. Whetstone Decl. at ¶¶ 6-7).] Dr. Piatt opines, also to a reasonable degree of medical certainty, that (1) Dr. Basse fully adhered to the applicable standard of care, and (2) any breach of that standard did not cause injury to Plaintiff. [Defense Facts 48 and 50 (citing Dr. Piatt Decl. at ¶¶ 6-7).] Consequently, the burden shifts to Plaintiff to demonstrate the presence of a factual issue suitable for trial.

Plaintiff has demonstrated that she has evidence showing that Defendants' treatment did not meet the standard of care. [Plaintiff's Response to Defense Facts 44, 46, 48, 50, 52, and 54; Plaintiff's Facts 1A-5A.] Dr. Ross Goldberg and Dr. Derek Golden provided declarations with opinions opposing those of defense experts Drs. Whetstone and Piatt. [*Ibid.* (citing Dr. Goldberg Decl. at ¶¶ 12-16 and Dr. Golden Decl. at ¶¶ 9, 12-14, 18-20).] As a result, the motions for summary judgment and for summary adjudication of Issues 3-6 are **DENIED**.

An additional reason to deny summary judgment is that Plaintiff alleges in paragraphs 9 and 10 of her Second Amended Complaint that SVMHS employs Drs. Moulton and Basse. Defendants have not provided any facts or evidence to refute these claims. [See Defense Facts 1-54.] For purposes of this motion only, SVMHS is considered vicariously liable for the actions of Drs. Moulton and Basse. Therefore, Defendants' motion for summary judgment and SVMHS's alternative motion for summary adjudication of Issues 1 and 2 are **DENIED**.

Conclusion.

Defendants' motions for summary judgment and, alternatively, summary adjudication are **DENIED**. The Court **SUSTAINS** Plaintiff's Objection No. 1 and Defendants' Objection Nos. 12-13. The remaining objections from both parties are **OVERRULED**.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.